GWANDA RURAL DISTRICT COUNCIL

Versus

HENDRIK JOHANNES BEZUIDENHOUT
(In his capacity as executor of estate late
Lourens Marthinus Botha (SNR)

IN THE HIGH COURT OF ZIMBABWE
KABASA J
BULAWAYO 19 MAY AND 9 JUNE 2026

Opposed Application

L. Nkomo, for the applicant
W. Ncube, for the respondent

KABASA J: This is an application for rescission of judgment granted under case No. HCBC 473/25. The applicant seeks the following relief:-

> "1. The order granted in HCBC 473/25 on 31 October 2025 be and is hereby rescinded.
>
> 2. The applicant be and is hereby granted leave to file its opposing papers in case number HCBC 473/25 within 10 days of granting of this order.
>
> 3. The respondent shall pay costs of suit if the matter is opposed.

The application is opposed. Both parties took points *in limine,* attacking the application itself and the affidavits filed in support as well as in opposing the application.

It is important to set out the background to this application.

BACKGROUND

On 14 June 2018 in HB 151-18, this court registered an arbitration award against the applicant. The applicant paid what was granted therein but in local currency. The respondent contended that such payment ought to have been in foreign currency and so filed an application for a declaratur under case number HCBF 892/24. That application was subsequently deemed abandoned for failure to file a certificate of service as provided for in r 58(14) as read with r 58(15) of the High Court Rules, 2021.

The respondent thereafter filed an application for condonation and extension of time to file the certificates of service. This application was granted under case number HCBC 473/25. The respondent obtained the following order on 31 October 2025:-

> "1. The application for condonation for failure to timeously file the certificates of service of the application in case No. HCBF 892/24 be and is hereby granted.
>
> 2. The application for extension of time within which to file the certificates of service of the application in case No. HCBF 892/24 be and is hereby granted.
>
> 3. The application for reinstatement of case No. HCBF 892/24 be and is hereby granted.
>
> 4. Applicant is directed to file the certificates of service of the application under HCBF 892/24 upon respondent and the Master within five (5) days of the grant of this order.
>
> 5. The filing of the notice of opposition, answering affidavit and heads of argument under cover of HCBF 892/24 be and is hereby condoned and these shall stand as part of the reinstated matter.
>
> 6. Applicant to pay respondent's costs on a party and party scale."

This is the order the applicant seeks to have rescinded. The order was granted after the application was granted as an unopposed matter following the court's decision to non-suit the applicant on the basis that the deponent to the opposing affidavit had failed to provide a valid resolution authorising him to act on behalf of the applicant.

At the hearing of the matter I asked the parties to address me on both the points *in limine* and merits. This I did so as to avoid calling the parties back should the points *in limine* be dismissed.

Points in Limine

I propose to deal with the points *in limine* relating to both the founding and opposing affidavits. Counsel for the applicant submitted that the date on which the opposing affidavit was commissioned is not stated. What is there is a scribbling which is difficult to decipher and the notary public did not endorse the date of commissioning. Counsel relied on the decisions in *Ariston Management Services* v *Econet Wireless Zimbabwe Limited* S 123-23 and *Zinyemba* v *Nyakamba & Ors* HH 108-24. Counsel concluded by praying that the application be dealt with as unopposed.

Mr Ncube for the respondent held a different view. Counsel referred to recent judgments of this court, *Sibanda* v *Tsanga* HH 295-26, *Good Living Real Estate* v *Adam & Co.*

(Pvt) Ltd HH 77-26 whose import is that it is the Commissioner of Oaths who endorses the date of commissioning. Counsel further submitted that the date endorsed on the opposing affidavit, which was said to be undecipherable, is an '8'. One's style of writing ought not be criticised as we all have different handwriting styles.

I must say the issue of the proper commissioning of affidavits is now an old and tired issue. What is clear and the thread which runs through all the cases from this court and the Supreme Court is that the deponent must take the oath before the Commissioner of Oaths and the actions must be contemporaneous. A deponent does not sign and then send the document for commissioning, a practice which appears to be rampant. I say so because this court has had occasion to deal with "affidavits" where 2 different dates appear, a clear indication of the fact that the deponent dated and signed the purported affidavit before sending it over to a Commissioner of Oaths who then signed and put the date of signing different from the one endorsed by the deponent. Such practice is to be frowned at and should stop. If the commissioning of affidavits was being done as it ought to be, these issues would not arise.

The opposing affidavit *in casu* states the following: -

> "Sworn to at Pretoria, Republic of South Africa this 8 day of December 2025.
>
> By Me….
>
> Before Me…. "

The deponent duly signed on the relevant portion and so did the notary public.

The contemporaneity is evident from the wording thereon, the deponent appeared before the Commissioner of Oaths on 8 December 2025. There are instances when such wording is different, giving rise to the argument of whether there was contemporaneity or not.

In *Mandishayike* v *Sithole* HH 798-15 the court had this to say:-

> "An affidavit is a written statement made on oath before a Commissioner of Oaths or other person authorised to administer oaths. The deponent to the statement must take the oath in the presence of the Commissioner of Oaths and must append his or her signature to the document in the presence of such Commissioner. Equally the Commissioner must administer the oath in accordance with the law and thereafter must append his or her signature onto the statement in the presence of the deponent. The Commissioner must also endorse the date on which the oath was so administered. These acts must occur contemporaneously."

I have already captured what appears at the bottom of the affidavit in question. It cannot be argued that there was no contemporaneity.

As regards the "8" which counsel for the applicant contended looks like a poor drawing of a "heart", the point is the style of writing cannot possibly be a basis for attacking the validity of an affidavit. Some people's **5** (five) looks like a **G** or an **S**, a **7** may look like a **I**. I do not think that this court should be detained over such. Why would a poor drawing of a heart appear on an affidavit where such is endorsed where the date must appear. It is a date not a drawing.

The point *in limine* is therefore without merit and is accordingly dismissed.

I turn now to the point *in limine* taken by the respondent. The argument is that the deponent endorsed the date which appears above his signature whilst the Commissioner of Oaths endorsed the date when such oath was administered and also stamped the affidavit, which stamp also has a date. In essence therefore three dates appear on the affidavit. What is clear however is that all three dates are the same, 27 November 2025.

Surely can it be argued that because the deponent endorsed the date which appears before his signature that invalidates the affidavit? The contemporaneous action is defeated because the deponent endorsed the date?

The Commissioner of Oath's signature is preceded by the following:-

> "I certify that the deponent has confirmed before me that he knows and understands the contents of this affidavit and it is to the best of his knowledge both true and correct. This affidavit was signed and sworn before me at Bulawayo on the 27th day of November 2025 and that the relevant laws regulating the taking of and administration of oaths were fully complied with."

A stamp bearing the name of the Commissioner of Oaths, his qualification and the date on which the oath was administered appears after the Commissioner's signature.

To seek to invalidate such an affidavit on the basis that it was the deponent who endorsed the date which appears above his signature is in my view taking the matter too far. It is, with respect, a sterile argument and one which ought not to be added to this old and tired argument on affidavits.

This point *in limine* also lacks merit and is dismissed.

The second point *in limine* taken by the respondent is that the application is incompetent and bad at law as the order which is sought to be rescinded did not deal with the substantive rights of the parties but merely condoned a failure to follow a procedural step.

I find this submission attractive. The order sought to be rescinded effectively paved the way for the real dispute to be heard, which is under case number HCBF 892/24. The court condoned the failure to observe the rules with regards to the filing of certificates of service of the application in HCBF 892/24. It is HCBF 892/24's resolution which has the effect of settling the dispute between the parties thereby bringing finality to litigation.

Having said this, the point is the condonation application was granted as unopposed after the opposing papers were expunged for the reason alluded to earlier on in this judgment. The order was to all intents and purposes, a default judgment. A litigant who seeks to vacate a default judgment does so through an application for rescission and not an appeal.

Whilst the wisdom of seeking to rescind an order which allowed the "correction" of a procedural error is questionable, I find myself unable to rule that the application is incompetent.

Attractive as this point *in limine* is, I am not persuaded to uphold it. It is accordingly dismissed.

THE MERITS

Counsel for the applicant submitted that the applicant was not in wilful default. The applicant duly filed all pleadings and the matter was set down for hearing. The court then pronounced that the resolution authorising the deponent to represent the company was not valid and so granted a default order.

The applicant had sought to address the "defective" resolution by filing a further resolution. Such conduct does not speak to a litigant who deliberately failed to act.

As regards the prospects of success, it was counsel's argument that the judgment debt was fully paid and the judgment in HB 151-18 which registered the arbitral award has superannuated. The claim the respondent seeks to prosecute in HCBF 892/24 has prescribed and the declaratur being sought in HCBF 892/24 is one that this court has no jurisdiction to deal with. The respondent's declaratur application under HCBF 892/24 seeks to circumvent the provisions of ss 20, 22(1)(d) and 22(4)(a) of the Finance Act (No. 2) Act No. 7 of 2019.

Counsel further submitted that HCBC 473/25 which is sought to be rescinded was unprocedural, incompetent and improperly before the court as it was based on r 58 instead of being premised on Practice Direction 1/2025.

The applicant therefore enjoys prospects of success warranting the granting of the application for rescission.

Mr Ncube, for the respondent countered these submissions, arguing that the applicant did not proffer an explanation for the default but merely explained why the order was granted as a default order. The resolution which had been filed was broad and not specific to the litigation in HCBC 473/25. No explanation was given as to why such resolution was filed and why the applicant did not take heed when the respondent pointed this out in the answering affidavit. An attempt was made to file another resolution, which attempt was only made at the eleventh hour. This is the default which the applicant ought to explain, which it did not.

As regards the prospects of success, counsel argued that the applicant devoted its energies on the prospects of success of HCBF 892/24 which is the main matter. The prospects of success ought to focus on the application under HCBC 473/25, the application which is sought to be argued should rescission be granted.

Counsel further submitted that no purpose is served by going back to procedural issues which HCBC 473/25 dealt with and not focus on the main matter which seeks to resolve the real dispute between the parties.

I deliberately did not refer to the cases both counsel relied on in their respective submissions. I intend to refer to these cases in my analysis of the arguments.

THE LAW

There are a plethora of cases which speak to the requirements to be met in applications for rescission. (*Dewaras Farm (Pvt) Ltd & Ors* v *Zimbabwe Banking Corp Ltd* 1988 (1) ZLR 368 (S) *Mdokwani* v *Shonhiwa* 1992 (1) ZLR 269 (S) *GD Haulage (Pvt) Ltd* v *Murugwi Bus Services (*Pvt) Ltd 1979 RLR 447)

Good and sufficient cause is what must be shown in order to succeed in rescinding a default judgment.

In *Dewaras Farm (Pvt) Ltd & Ors* v *Zimbank* (*supra*) the court had this to say: -

> "good and sufficient cause is at the basis of rescission of judgment. This gives the court a wide discretion and it is not possible to provide an exhaustive definition of what constitutes sufficient cause to justify the grant of indulgence. Even where there has been wilful default there may still sometimes be good and sufficient cause for granting rescission. The good and sufficient cause, for instance, might arise from the motive behind the default."

The reasonableness of the explanation for the default, the *bona fides* of the application for rescission and the *bona fides* of the defence on the merits which carry some prospects of success are the factors the court looks at when considering whether good and sufficient cause exists.

APPLICATION OF THE LAW TO THE FACTS

Turning to the facts *in casu*, the applicant's resolution was adjudged "invalid" because it was not case specific. The applicant was warned before the hearing but chose not to address the issue.

In *Zimbank* v *Masendeke* 1995 (2) ZLR 400 (S) the court said:-

> "Wilful default occurs where a party with full knowledge of the service or set down of the matter and of the risks attendant upon default freely takes a decision to refrain from attending."

In *Neuman (Pvt) Ltd* v *Marks* 1960 (2) SA 170 (SR) the court put it thus: -

> "The true test, to my mind, is whether the default is a deliberate one, i.e. when a defendant with full knowledge of the set down and of the risks attendant on his default, freely takes a decision to refrain from appearing."

The applicant's representative had deposed to affidavits before in the protracted litigation between the parties. The applicant therefore genuinely believed that the resolution filed was in order. It was subsequently decided otherwise.

However can it be said the applicant's conduct amounts to wilful failure to act fully aware of the risks.

I am not persuaded to accept that the applicant, after filing all necessary pleadings and appearing on the day of hearing, deliberately chose not to attend to the resolution issue well knowing and appreciating that such resolution would result in them being non-suited.

I therefore hold the view that the default, given the circumstances, cannot be said to have been wilful.

This is just but the first hurdle. These factors are not taken in isolation but in conjunction with each other and with the application as a whole. (*Masulani* v *Masulani & Ors* 2003 (1) ZLR 491 (H).

I turn now to the *bona fides* of the application. The applicant seeks to rescind an order which granted the respondent condonation to correct procedural errors and paved way for HCBF 892/24 to be heard.

What useful purpose does it serve to take the matter back to an application for condonation? It is important not to lose sight of the fact that the respondent's application under HCBF 892/24 was deemed abandoned for failing to file certificates of service of the application.

The application had been served to all the parties and the subsequent pleadings filed right up to heads of argument. The order granted in default bears testimony to the fact that HCBF 892/24 was all but ready for hearing.

Why does the applicant want to go back to that condonation stage? The court was referred to the case of *Kwaramba* v *Winshop Enterprises & Ors* HH 788-15 where MATHONSI J (as he then was) had this to say: -

> "Why would a party approach the court for a rescission of a judgment order unless proceedings with the main cause is so calamitous that it cannot be contemplated. For one thing such a party would have obtained a default judgment which would have been rescinded by the court thereby paving the way for the resolution of the main matter once and for all. To then spend time, energy and money trying to reverse the process and revert to the default judgment *status quo*, is in my view a trifle …"

Whilst I may not authoritatively speak to the merits of the declaratur application under HCBF 892/24, I would however say the remarks by MATHONSI J are apposite. Instead of focusing on the matter which seeks to decide the substantive rights of the parties, the applicant is seeking to go back to the issue of condonation, a procedural step which bestowed no substantive rights to either party.

Is this a *bona fide* application which seeks to achieve not only finality to litigation but a resolution of the dispute between the parties? I hold the view that this is an application that merely seeks to prolong the resolution of the real dispute, meandering through the court corridors for no meaningful purpose.

I therefore find that the application is not *bona fide*. There must be finality to litigation. The interests of public policy in seeing finality to litigation far outweigh the interests of a litigant whose application seeks to reverse a procedural step, more so as a reading of the applicant's papers show that the applicant is aggrieved by the court's decision to grant the condonation in a matter that the applicant considers as having been improperly before it. It essentially attacks the court for failing to appreciate the impropriety of the application for condonation.

I turn now to the prospects of success. The applicant devoted a lot of energy on the lack of prospects of success of case number HCBF 892/24. The bulk of the submissions that were made which were meant to show that HCBF 892/24 is a hopeless case are not relevant for purposes of the application I am seized with. Such arguments are to be made in HCBF 892/24.

The prospects of success to be addressed for purposes of this application relate to the condonation under HCBC 473/25.

The applicant's resolution authorising the deponent to the opposing affidavit to depose to such affidavit was adjudged to be invalid. That resolution is the one filed in HCBC 473/25 which the applicant intends to re-visit.

The fact that the application was premised on r 58 and not Practice Direction 1/2025 would not change the import of the application and what it is the respondent then sought to be condoned for.

In any event, even where a matter is unopposed, the court does not grant the application unless a case has been made for the order sought.

The court exercised its discretion in granting the application for condonation. The applicant in seeking its rescission, seeks to show that such condonation ought not to have been granted.

The *bona fides* of the defence in seeking to reverse the condonation, are in my view, non-existent.

As already stated, a lot was said regarding HCBF 892/24 but this application is not concerned with the arguments to be ventilated in HCBF 892/24. I would say, if the applicant

holds the view that HCBF 892/24 has zero chances of succeeding, it is all the more reason why HCBF 892/24 should be argued and the matter put to rest.

I am therefore not persuaded with the applicant's submissions and a case has not been made for the relief the applicant seeks.

COSTS

The respondent asked for costs on a punitive scale. Such costs are awarded as a sign of the court's displeasure at the conduct of a litigant. They are therefore a form of censure and should be sparingly awarded. I am unable to say the applicant was bent on abusing the court process.

Costs are at the court's discretion. The respondent is entitled to costs and I do not see any justification for departing from the norm that costs follow the cause. A case for punitive costs has however not been made.

I would ordinarily order that costs be in the cause given that this is an application for rescission of judgment. However, for the reason that the applicant ought to have focused on arguing the main matter, i.e. HCBF 892/24, I intend to award costs for this application and not leave it to be decided under case number HCBF 892/24, which is the main matter.

DISPOSITION

In the result, I make the following order: -

1. The application for rescission of the judgment granted under HCBC 475/23 be and is hereby dismissed.
2. The applicant shall pay costs at party and party scale.

Calderwood, Bryce Hendrie and Partners, applicant's legal practitioners

Ncube Attorneys, respondent's legal practitioners